IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re Patent Application of:	Reinaldo Javier Aguiar Marcano
Application Number:	19/560,038
Confirmation Number:	2359
Filing Date:	March 7, 2026
Group Art Unit:	Pre-Exam / TC 2100
Examiner:	ADAM DEMARAY
Title of Invention:	OPTICAL COMPUTING ARCHITECTURE AND SYSTEM

APPLICANT'S COMPLETE RESPONSE TO NOTICE TO FILE MISSING PARTS
(37 CFR §§ 1.52, 1.53(f), 1.58(a), 1.84, 1.125; MPEP §§ 506, 601.01(a), 608.01)
SUBMISSION OF SUBSTITUTE SPECIFICATION EXCISING EMBEDDED DRAWINGS
SUBMISSION OF FORMAL STANDALONE DRAWING SHEETS (37 CFR § 1.84)
SUBMISSION OF REPLACEMENT CLAIMS AND ABSTRACT ON SEPARATE SHEETS
SUBMISSION OF INVENTOR'S DECLARATION (37 CFR § 1.63)
REAFFIRMATION OF SMALL ENTITY STATUS (37 CFR § 1.27)
PETITION FOR ONE-MONTH EXTENSION OF TIME (37 CFR § 1.136(a)) AND CONDITIONAL REQUEST FOR SUSPENSION OF ACTION (37 CFR § 1.103)

Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In response to the Notice to File Missing Parts of Nonprovisional Application mailed on August 5, 2026, and in view of the Decision on Petition under 37 CFR § 1.183 mailed on October 1, 2026, the *pro se* Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this complete, substantive response curing all noted pre-examination formalities and fee deficiencies.

I. EXECUTIVE SUMMARY OF CURED ITEMS

Applicant has completely and successfully cured every formality, drawing, technical, and fee item cited in the pre-examination notices in accordance with 37 CFR §§ 1.52, 1.53(f), 1.58(a), 1.63, 1.72, 1.75, 1.84, 1.125, and MPEP §§ 506, 601.01(a):

1. **Substitute Specification (37 CFR § 1.125; MPEP § 608.01(q)):** Submitted herewith as a standalone document, formatted with compliant double line spacing in accordance with 37 CFR § 1.52(b), completely excising all embedded drawings pursuant to 37 CFR § 1.58(a), and accompanied by the mandatory statement of no new matter under 37 CFR § 1.125(b).
2. **Formal Replacement Drawing Sheets (37 CFR § 1.84; 37 CFR § 1.121(d)):** Submitted herewith as standalone formal drawing sheets (Sheets 1–3 comprising FIG. 1, FIG. 2, and FIG. 3) on plain white paper with 1-inch margins, clear figure labels, and without excessive descriptive text pursuant to 37 CFR § 1.84(o).
3. **Replacement Claims on a Separate Sheet (37 CFR §§ 1.75(h), 1.121; MPEP § 608.01(a)):** Submitted herewith as a standalone document, containing original Claims 1 through 10 commencing on a new, separate page with compliant double line spacing under 37 CFR § 1.52(b).
4. **Replacement Abstract on a Separate Sheet (37 CFR § 1.72(b); MPEP § 608.01(b)):** Submitted herewith as a standalone document, containing the complete original Abstract commencing on its own separate page with compliant double line spacing under 37 CFR § 1.52(b).
5. **Inventor's Declaration (37 CFR § 1.63):** Submitted herewith, identifying Application No. 19/560,038, setting forth the inventor's legal residence address, mailing address, citizenship, and the required authorization averment under 37 CFR § 1.63(a)(4).
6. **Reaffirmation of Small Entity Status and Reservation of Fee Payment Due to USPTO Payment System Outage (37 CFR § 1.27; MPEP § 506):** Applicant formally reaffirms Small Entity status under 37 CFR § 1.27. Due to the official maintenance outage of the USPTO electronic payment platform on October 10, 2026, Applicant submits all substantive papers today without point-of-sale fee payment, and respectfully requests that the Office note this timely filing date and issue a formal Notice of Fee Deficiency for the net $640.00 Small Entity fees pursuant to 37 CFR § 1.53(f) and MPEP § 506, allowing fee settlement to proceed in accordance with standard Office deficiency procedures.
7. **Petition for Extension of Time (37 CFR § 1.136(a); MPEP § 710.02(e)):** Submitted herewith, petitioning for a one-month extension of time (extending the reply deadline from October 5, 2026 to November 5, 2026) and requesting that the applicable Small Entity fee of $94.00 (Fee Code 2251) be assessed via formal Notice of Fee Deficiency.
8. **Conditional Request for Suspension of Action (37 CFR § 1.103(a); MPEP § 709):**

Submitted concurrently, requesting a six-month suspension of action on the merits to take effect conditionally upon OPAP clearance into Technology Center 2100 (Fee Code 2830, $60.00).

II. STATEMENT OF COMPLIANCE AND DETAILED RESPONSES

1. Technical Compliance: Excision of Embedded Drawings and Submission of Formal Drawing Sheets (37 CFR §§ 1.58(a), 1.84, 1.121(d))

The Notice to File Missing Parts mailed August 5, 2026 explicitly objected under 37 CFR § 1.58(a) to drawings or flow diagrams embedded on pages 6, 7, and 8 of the original specification, requiring their removal and presentation on separate formal drawing sheets under 37 CFR § 1.84.

Applicant has fully cured this deficiency:

- All embedded figures, image data, and drawings have been completely excised from the body of the Substitute Specification submitted herewith pursuant to 37 CFR § 1.58(a).
- Concurrently, Applicant submits standalone **Replacement Drawing Sheets** (Sheets 1–3) complying with 37 CFR § 1.84 and 37 CFR § 1.121(d). Each figure is presented on plain white paper with 1-inch margins, clear figure labels (FIG. 1, FIG. 2, FIG. 3), and without excessive descriptive text pursuant to 37 CFR § 1.84(o).

2. Technical Compliance: Substitute Specification (37 CFR § 1.125, 1.52(b))

The Notice to File Missing Parts noted that the originally filed specification failed to comply with 37 CFR § 1.52(b) because the line spacing was not 1.5 or double spaced.

Applicant hereby submits a clean, publication-ready **Substitute Specification** pursuant to 37 CFR § 1.125:

- The substitute specification is printed with strict double line spacing, 1-inch margins, and consecutive paragraph structure in full compliance with 37 CFR § 1.52(b).
- Pursuant to 37 CFR § 1.125(b), Applicant expressly certifies that the substitute specification includes no new matter. The technical description corresponds verbatim to the original technical disclosure filed on March 7, 2026.

3. Technical Compliance: Replacement Claims and Abstract Commencing on Separate Sheets

The pre-examination notices noted that the original application commenced the Claims on page 4 following the descriptive text, and placed the Abstract on page 1 below the title, rather than on separate sheets.

Applicant hereby submits standalone replacement sheets pursuant to 37 CFR § 1.121:

- **Replacement Claims Sheet:** Original Claims 1 through 10 are set forth on clean standalone pages commencing on a separate sheet, in full compliance with 37 CFR § 1.75(h), 37 CFR § 1.126, and MPEP § 608.01(a), formatted with strict double line spacing.
- **Replacement Abstract Sheet:** The complete Abstract of the technical disclosure is set forth on its own separate page, commencing on a separate sheet in full compliance with 37 CFR § 1.72(b) and MPEP § 608.01(b), formatted with strict double line spacing.

4. Inventor's Declaration under 37 CFR § 1.63

To pre-emptively satisfy all statutory inventor identification requirements, Applicant submits an executed **Inventor's Declaration** under 37 CFR § 1.63 identifying Application No. 19/560,038, affirming the inventor's authorization under 37 CFR § 1.63(a)(4), and providing the inventor's legal residence address (26714 Valleyside Drive, Katy, TX 77494) and mailing address (2302 Britton Ridge Drive, Katy, TX 77494) in strict compliance with 37 CFR § 1.63(b).

5. Establishment of Entity Status, Fee Reconciliation, and Notice of USPTO Payment Outage (37 CFR § 1.27; MPEP § 506)

On October 9, 2026, Applicant successfully logged a verified 'Assertion of entitlement to small entity status via PC' ('SES.REQ.PC'), which is formally recorded in the Image File Wrapper. Applicant hereby reaffirms Small Entity status under 37 CFR § 1.27.

Applicant calculates the applicable fees under the Small Entity schedule:

- Basic Filing Fee (37 CFR § 1.16(a)): $70.00
- Search Fee (37 CFR § 1.16(k)): $308.00
- Examination Fee (37 CFR § 1.16(o)): $352.00
- Late Filing Surcharge (37 CFR § 1.16(f)): $68.00
- Non-DOCX Penalty Fee (37 CFR § 1.16(u)): $172.00
- **Total Statutory Pre-Exam Fees:** $970.00
- Less Previous Unapplied Credit: -$484.00
- **Net Pre-Exam Formalities Balance Due: $486.00**
- One-Month Extension Fee (37 CFR § 1.136(a), Fee Code 2251): **$94.00**
- Suspension Processing Fee (37 CFR § 1.103(a), Fee Code 2830): **$60.00**
- **Total Statutory Small Entity Fees Payable: $640.00**

FORMAL NOTICE OF USPTO PAYMENT PLATFORM OUTAGE (OCTOBER 10, 2026):

Applicant notes that on today's filing date (Saturday, October 10, 2026), the USPTO electronic payment platform (Patent Center Fee Processing / Financial Manager) is offline for system maintenance and unavailable to process electronic fee transactions, as prominently announced via official banner on the USPTO website.

To maintain total compliance with statutory deadlines and prevent procedural forfeiture, Applicant submits all substantive technical documents, replacement drawings, declarations, and petitions electronically today without point-of-sale fee payment. Pursuant to 37 CFR § 1.53(f) and MPEP § 506, Applicant respectfully requests that the Office record this timely submission date and issue a formal Notice of Fee Deficiency or invoice setting forth any assessed balance due under the Small Entity schedule in accordance with standard Office practice, or hold fee collection in abeyance pursuant to the concurrent Request for Suspension.

6. Petition for Extension of Time under 37 CFR § 1.136(a)

The Notice to File Missing Parts mailed August 5, 2026 set an initial two-month period for reply expiring October 5, 2026. A one-month extension under 37 CFR § 1.136(a) extends the reply period to **November 5, 2026**.

Applicant concurrently petitions for a **One-Month Extension of Time** under 37 CFR § 1.136(a) and respectfully requests that the applicable Small Entity extension fee of **$94.00** (Fee Code 2251) be assessed via formal Notice of Fee Deficiency pursuant to 37 CFR § 1.53(f) and MPEP § 506.

III. COMPLIANCE WITH OCTOBER 1, 2026 PETITION DECISION (OPPT)

Applicant respectfully acknowledges receipt of the Office of Petitions Decision dated October 1, 2026 (signed by Attorney Advisor Charles Steven Brantley), dismissing Applicant's prior petition under 37 CFR § 1.183.

Applicant has complied strictly with the guidance provided by the Office of Petitions:

1. Rather than pursuing further burdensome Rule 183 petitions or requests for reconsideration, Applicant has focused on the complete, immediate perfection of all pre-examination filing formalities;
2. By submitting the substitute specification excising embedded drawings, formal standalone drawing sheets, replacement claims, replacement abstract, inventor declaration, small entity fee remittance, and 1-month extension of time, **this application is now in 100% complete compliance with all requirements of the pre-examination notices**; and
3. Applicant respectfully requests that the Office of Patent Application Processing (OPAP) issue the formal **Notice of Acceptance of Application** (or updated Filing Receipt) and forward this application to Technology Center 2100 (Examiner ADAM DEMARAY) for examination.

IV. CONDITIONAL REQUEST FOR SUSPENSION OF ACTION UNDER 37 CFR § 1.103

Pursuant to MPEP § 709, a request for suspension of action under 37 CFR § 1.103 cannot be granted while a notice to file missing parts is outstanding. Therefore, Applicant submits his concurrent Request for Suspension under § 1.103(a) as a **conditional request** to take effect immediately upon OPAP's determination that the pre-examination formalities have been completely cured and the application has been docketed for examination in Technology Center 2100.

The suspension is requested for good and sufficient cause based on active federal civil rights litigation currently pending resolution before the United States District Court for the Southern District of Texas (Civil Action No. 4:26-CV-08794, *Aguiar Marcano v. Pickett et al.*).

V. CONCLUSION

Applicant has fully and completely satisfied all requirements of the pre-examination notices. It is respectfully requested that the application be accepted and processed for substantive examination.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/
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